

HEADNOTE

“1. As a general rule, the defendant addressed in an injunction is obliged to control third parties to which it assigns tasks to fulfil the injunction on its behalf. Similarly, if a defendant uses a thirdparty marketing platform and provides content for it, it is the defendant's responsibility to ensure that the platform's content does not result in non-compliance with the court order.

2. It is not sufficient to implement geo-blocking measures to block the purchase option on a platform for territories prohibited by the PI order when offering and placing on the market, which are independent actions under Art. 25 UPCA, have been prohibited by the PI order.

3. An accurate website disclaimer for availability of attacked embodiments in the prohibited countries can be adequate for compliance with an injunction, provided that whatever was included on the website could not reasonably be interpreted by any visitor as constituting an offering of the attacked embodiments within the territories as specified in the order.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional measures

PATENT
EP 2 387 951

Braided medical device and manufacturing method therefore

KEYWORDS

Penalties

forfeiture

offering

Article 25 Right to prevent the direct use of the invention

SUMMARY

The Court of Appeal Luxembourg ruled on an application for provisional measures. The patent at issue relates to a braided medical device and manufacturing method therefore. According to the headnotes of the decision, defendants remain responsible for ensuring that third parties acting on their behalf, including those managing marketing platforms or fulfilling other tasks, comply with court-ordered injunctions. Geo-blocking technology alone is insufficient to satisfy an injunction that prohibits both offering and placing a product on the market, since these constitute separate infringing activities under the UPCA. A website disclaimer accurately describing the unavailability of the patented product in specified territories can constitute adequate compliance, provided that the website content could not reasonably be understood by visitors as an offer to sell the product in those prohibited regions.